

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2051

By: Stinson

AS INTRODUCED

An Act relating to practice of medicine; creating the Graduate Physicians Act; defining terms; limiting scope of graduate physician practice; specifying applicability of supervision requirements; directing the State Board of Medical Licensure and Supervision to promulgate certain rules; specifying duration of licensure; authorizing certain penalties for noncompliance with specified standards; specifying allowed professional titles; making collaborating physician responsible for graduate physicians; requiring collaborative practice arrangement within specified time period; stipulating requirements for collaborating physician and collaborative practice arrangement; requiring arrangement to include certain provisions; directing promulgation of additional rules; imposing certain limits on collaborative practice arrangements; prohibiting certain disciplinary actions under certain circumstances; providing for identification and reporting of collaborating physicians; providing for publication and tracking of certain information; granting certain protections to collaborating physicians and graduate physicians; requiring certain identification badges; requiring completion of certification course; specifying applicability of collaborative practice agreements; providing for codification; and providing an effective date.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. NEW LAW A new section of law to be codified
3 in the Oklahoma Statutes as Section 479.1 of Title 59, unless there
4 is created a duplication in numbering, reads as follows:

5 This act shall be known and may be cited as the "Graduate
6 Physicians Act".

7 SECTION 2. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 479.2 of Title 59, unless there
9 is created a duplication in numbering, reads as follows:

10 As used in this act:

- 11 1. "Graduate physician" means a medical school graduate who:
- 12 a. is a resident and citizen of the United States or a
 - 13 legal resident alien in the United States, and
 - 14 b. has successfully completed Step 1 and Step 2 of the
 - 15 United States Medical Licensing Examination (USMLE),
 - 16 or the equivalent of Step 1 and Step 2 of any other
 - 17 medical licensing examination or combination of
 - 18 examinations that is approved by the State Board of
 - 19 Medical Licensure and Supervision or the State Board
 - 20 of Osteopathic Examiners, within the two-year period
 - 21 immediately preceding the date of the person's
 - 22 application for licensure as a graduate physician, but
 - 23 not more than three (3) years after graduation from a
 - 24 medical school or school of osteopathic medicine;

1 2. "Graduate physician collaborative practice arrangement"
2 means an agreement between a licensed physician and a graduate
3 physician that meets the requirements of this act; and

4 3. "Medical school graduate" means any person who has graduated
5 from a medical school as described in Section 493.1 of Title 59 of
6 the Oklahoma Statutes or a school of osteopathic medicine as
7 described in Section 630 of Title 59 of the Oklahoma Statutes;

8 SECTION 3. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 479.3 of Title 59, unless there
10 is created a duplication in numbering, reads as follows:

11 Graduate physicians shall be subject to the supervision
12 requirements established in any controlling federal law, any
13 supervision requirements provided in this act, and any supervision
14 requirements established by the State Board of Medical Licensure and
15 Supervision. Graduate physicians are not subject to any additional
16 supervision requirements, other than the supervision requirements
17 provided in this section.

18 SECTION 4. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 479.4 of Title 59, unless there
20 is created a duplication in numbering, reads as follows:

21 A. The State Board of Medical Licensure and Supervision, in
22 consultation with the State Board of Osteopathic Examiners, shall
23 promulgate rules:
24

1 1. To establish the process for licensure of graduate
2 physicians, supervision requirements, and additional requirements
3 for graduate physician collaborative practice arrangements;

4 2. To set fees in an amount greater than or equal to the total
5 costs necessary to facilitate the graduate physician collaborative
6 practice arrangement each year; and

7 3. To address any other matters necessary to protect the public
8 and discipline the profession.

9 B. A graduate physician's license issued pursuant to this act
10 and the rules promulgated by the State Board of Medical Licensure
11 and Supervision shall only be valid for two (2) years from the date
12 of issuance and is not subject to renewal. The State Board of
13 Medical Licensure and Supervision or the State Board of Osteopathic
14 Examiners may deny an application for licensure or suspend or revoke
15 the license of a graduate physician for violation of the standards
16 provided in the Oklahoma Allopathic Medical and Surgical Licensure
17 and Supervision Act or the Oklahoma Osteopathic Medicine Act, or
18 such other standards of conduct established by the State Board of
19 Medical Licensure and Supervision or the State Board of Osteopathic
20 Examiners by rule.

21 SECTION 5. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 479.5 of Title 59, unless there
23 is created a duplication in numbering, reads as follows:

1 A graduate physician shall clearly identify himself or herself
2 as a graduate physician and shall be permitted to use the
3 identifiers "Doctor" or "Dr." A graduate physician shall not
4 practice, or attempt to practice, without a graduate physician
5 collaborative practice arrangement, except as otherwise provided in
6 this act.

7 SECTION 6. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 479.6 of Title 59, unless there
9 is created a duplication in numbering, reads as follows:

10 The licensed physician collaborating with a graduate physician
11 shall be responsible for supervising the activities of the graduate
12 physician and shall accept full responsibility for the primary care
13 services provided by the graduate physician.

14 SECTION 7. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 479.7 of Title 59, unless there
16 is created a duplication in numbering, reads as follows:

17 A. This act applies to all graduate physician collaborative
18 practice arrangements. To be eligible to practice as a graduate
19 physician, a licensed graduate physician shall enter into a graduate
20 physician collaborative practice arrangement with a licensed
21 physician no later than six (6) months after the date on which the
22 graduate physician obtains initial licensure.

23 B. Only a physician licensed by the State Board of Medical
24 Licensure and Supervision or the State Board of Osteopathic

1 Examiners may enter into a graduate physician collaborative practice
2 arrangement with a graduate physician. Graduate physician
3 collaborative practice arrangements shall take the form of a written
4 agreement that includes mutually agreed-upon protocols and any
5 standing orders for the delivery of services. Graduate physician
6 collaborative practice arrangements may delegate to a graduate
7 physician the authority to prescribe, administer, or dispense drugs
8 and provide treatment, as long as the delivery of the services is
9 within the scope of the graduate physician's practice and is
10 consistent with the graduate physician's skill, training, and
11 competence and the skill, training, and competence of the
12 collaborating physician; except that a graduate physician shall not
13 prescribe controlled dangerous substances. The collaborating
14 physician shall be board-certified in the specialty that the
15 graduate physician is practicing.

16 C. The graduate physician collaborative practice arrangement
17 shall contain the following provisions:

18 1. Complete names, home and business addresses, and telephone
19 numbers of the collaborating physician and the graduate physician;

20 2. A requirement that the graduate physician practice at the
21 same location as the collaborating physician;

22 3. A requirement that a prominently displayed disclosure
23 statement informing patients that they may be seen by a graduate
24 physician, and advising patients that the patient has the right to

1 see the collaborating physician, be posted in every office where the
2 graduate physician is authorized to prescribe;

3 4. All specialty or board certifications of the collaborating
4 physician and all certifications of the graduate physician;

5 5. The manner of collaboration between the collaborating
6 physician and the graduate physician, including how the
7 collaborating physician and the graduate physician will:

8 a. engage in collaborative practice consistent with each
9 professional's skill, training, education, and
10 competence, and

11 b. maintain geographic proximity. However, the graduate
12 physician collaborative practice arrangement may only
13 allow for geographic proximity to be waived for no
14 more than twenty-eight (28) days per calendar year for
15 rural health clinics, as long as the graduate
16 physician collaborative practice arrangement includes
17 alternative plans as required by the State Board of
18 Medical Licensure and Supervision. The exception to
19 the geographic proximity requirement applies only to
20 independent rural health clinics, provider-based rural
21 health clinics, if the provider is a critical access
22 hospital as provided in 42 U.S.C., Section 1395i-4,
23 and provider-based rural health clinics, if the
24 primary location of the hospital sponsor is more than

1 twenty-five (25) miles from the clinic. The
2 collaborating physician shall maintain documentation
3 related to the geographic proximity requirement and
4 present the documentation to the State Board of
5 Medical Licensure and Supervision upon request;

6 6. A requirement that the graduate physician shall not provide
7 patient care during an absence of the collaborating physician for
8 any reason;

9 7. A list of all other graduate physician collaborative
10 practice arrangements of the collaborating physician and the
11 graduate physician;

12 8. The duration of the graduate physician collaborative
13 practice arrangement between the collaborating physician and the
14 graduate physician;

15 9. A provision describing the time and manner of the
16 collaborating physician's review of the graduate physician's
17 delivery of services. The provision shall require the graduate
18 physician to submit to the collaborating physician a minimum of
19 twenty-five percent (25%) of the charts documenting the graduate
20 physician's delivery of services for review by the collaborating
21 physician or by any other physician designated in the graduate
22 physician collaborative practice arrangement every fourteen (14)
23 days after the initial observation year. For the first three (3)
24 months of the initial observation year, the collaborating physician

1 shall review one hundred percent (100%) of the charts documenting
2 the graduate physician's delivery of primary care services. For
3 months four (4) through twelve (12), the collaborating physician
4 shall review seventy-five percent (75%) of the charts documenting
5 the graduate physician's delivery of services; and

6 10. A requirement that a collaborating physician be on premises
7 if the graduate physician performs services in a hospital or
8 emergency department.

9 SECTION 8. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 479.8 of Title 59, unless there
11 is created a duplication in numbering, reads as follows:

12 A. The State Board of Medical Licensure and Supervision, in
13 consultation with the State Board of Osteopathic Examiners, shall
14 promulgate rules regulating the use of graduate physician
15 collaborative practice arrangements for graduate physicians. The
16 rules shall specify:

17 1. The methods of treatment that may be covered by the graduate
18 physician collaborative practice arrangement;

19 2. The educational methods and programs to be performed during
20 the collaborative practice service, developed in consultation with
21 deans of medical schools and primary care residency program
22 directors in this state, which shall facilitate the advancement of
23 the graduate physician's medical knowledge and capabilities, the
24 successful completion of which may lead to credit toward a future

1 residency program that deems the documented educational achievements
2 of the graduate physician through the methods and programs
3 acceptable; and

4 3. Require review of the services provided under a graduate
5 physician collaborative practice arrangement.

6 B. A collaborating physician shall not enter into a graduate
7 physician collaborative practice arrangement with more than three
8 graduate physicians at the same time.

9 SECTION 9. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 479.9 of Title 59, unless there
11 is created a duplication in numbering, reads as follows:

12 A. The State Board of Medical Licensure and Supervision, in
13 consultation with the State Board of Osteopathic Examiners, shall
14 promulgate rules applicable to graduate physicians that are
15 consistent with the guidelines established for federally funded
16 clinics. The rulemaking authority granted to the State Board of
17 Medical Licensure and Supervision in this subsection does not extend
18 to graduate physician collaborative practice arrangements of
19 hospital employees providing inpatient care within hospitals.

20 B. The State Board of Medical Licensure and Supervision or the
21 State Board of Osteopathic Examiners shall not deny, revoke,
22 suspend, or otherwise take disciplinary action against a
23 collaborating physician for services delegated to a graduate
24 physician as long as the provisions of this section and any

1 applicable rules promulgated by the State Board of Medical Licensure
2 and Supervision are satisfied.

3 C. Within thirty (30) days of any licensure change, the State
4 Board of Medical Licensure and Supervision or the State Board of
5 Osteopathic Examiners shall require every physician to identify
6 whether the physician is engaged in a graduate physician
7 collaborative practice arrangement, and to report to the physician's
8 licensing board the name of each graduate physician with whom the
9 physician has entered into an arrangement. Each board may make the
10 information available to the public. The State Board of Medical
11 Licensure and Supervision shall track the reported information and
12 may routinely conduct reviews or inspections to ensure that the
13 arrangements are being carried out in compliance with this act.

14 D. A contract or other agreement shall not require a physician
15 to act as a collaborating physician for a graduate physician against
16 the physician's will. A physician has the right to refuse to act as
17 a collaborating physician, without penalty, for a particular
18 graduate physician. A contract or other agreement shall not limit
19 the collaborating physician's authority over any protocols or
20 standing orders, or delegate the physician's authority to a graduate
21 physician. However, this subsection does not authorize a physician
22 in implementing protocols, standing orders, or delegation to violate
23 applicable standards for safe medical practice established by a
24 hospital's medical staff.

1 E. A contract or other agreement shall not require a graduate
2 physician to serve as a graduate physician for any collaborating
3 physician against the graduate physician's will. A graduate
4 physician has the right to refuse to collaborate, without penalty,
5 with a particular physician.

6 F. All collaborating physicians and graduate physicians under a
7 graduate physician collaborative practice arrangement shall wear
8 identification badges while acting within the scope of the
9 arrangement. The identification badges shall prominently display
10 the licensure status of the collaborating physician and the graduate
11 physician.

12 SECTION 10. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 479.10 of Title 59, unless there
14 is created a duplication in numbering, reads as follows:

15 A. The collaborating physician shall complete a certification
16 course, which may include material on the laws pertaining to the
17 professional relationship. The certification course shall be
18 approved by the State Board of Medical Licensure and Supervision or
19 the State Board of Osteopathic Examiners.

20 B. A graduate physician collaborative practice arrangement
21 shall supersede current hospital licensing regulations governing
22 hospital medication orders under protocols or standing orders for
23 the purpose of delivering inpatient or emergency care within a
24 hospital as defined in Section 1-701 of Title 63 of the Oklahoma

1 Statutes, if the protocols or standing orders have been approved by
2 the hospital's medical staff and pharmaceutical therapeutics
3 committee.

4 SECTION 11. This act shall become effective November 1, 2025.

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